

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: July 27, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

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12.	<i>In re Frank L. Williams</i> 2026-01582239	Before the court is the petition by petitioner Cynthia Tauler (Petitioner) for a court order compelling compliance with advanced healthcare directive. Specifically, Petitioner seeks an order directing Memory Garden Memorial Park (Memory Garden) to comply with her instruction to bury the remains of decedent Frank L. Williams (Decedent) pursuant to her authority as the designated agent under Decedent's

		advanced health care directive, and over the objection of respondent Jay Allen Williams (Respondent). As set forth more fully below, the petition is GRANTED. If a decedent has not provided for his interment by will or other written direction, the right to control disposition of the decedent's remains, the location and conditions of interment, and the arrangements for funeral goods and services belongs exclusively to decedent's fiduciary and/or certain surviving relatives in statutory order of priority. (Health & Safety Code § 7100; <i>Spates v. Dameron Hosp. Ass'n</i> (2003) 114 Cal.App.4th 208, 222.) Priority to the right to control descends first on the agent designated to make health care decisions pursuant to Probate Code section 4600 et. seq. (Health and Safety Code § 7100, subd. (a)(1).) If there is no health care agent, the right passes to decedent's competent surviving relatives—first, to the surviving spouse or registered domestic partner; then to the surviving children, parents, siblings or next of kin under the laws of succession. (Health & Safety Code § 7100, subds. (a)(2)-(6).) Petitioner produced the advanced health care directive (AHCD) signed by Decedent on February 11, 2025, showing Petitioner is his designated health care agent and he granted her the authority to direct the disposition of his remains. Petitioner also has produced contracts Decedent entered into with Memory Garden in January 2025 providing for his burial along with his wife who predeceased him. Respondent contends he is Decedent's son, but does not assert the right to control disposition of Decedent's remains. Rather, Respondent contends the validity of the AHCD is disputed in a separate, pending probate proceeding and objects to Petitioner's authority to act. Respondent contends the AHCD is part of a larger packet of estate planning documents that he is challenging in separate probate court proceedings on a variety of grounds. Respondent contends this petition should be delayed or denied until his challenges to the various documents are determined. He also asserts he has proposed delaying Decedent's burial until he has had time to arrange and pay for a private autopsy of Decedent. According to Respondent, the autopsy is needed to support his challenges in probate court. Finally, Respondent contends that allowing Petitioner to direct the disposition of Decedent's remains will effectively validate the AHCD and other documents.
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		Respondent, however, presents no authority that merely filing a challenge in probate court suspends Petitioner's authority under the AHCD. Moreover, Respondent has not shown he has taken any action in probate court to suspend any of Petitioner's powers. Respondent also has not presented any evidence to this court showing any basis for challenging the AHCD. Allowing Petitioner to direct the disposition of Decedent's remains consistent with the contracts Decedent signed with Memory Garden will not validate Decedent's various estate planning documents. Finally, Decedent passed away on or about June 12, 2026, and although Respondent claims the petition should be denied or delayed to allow him to arrange for an autopsy of Decedent, Respondent has failed to show he has taken any steps to do so in the more than six weeks that have elapsed since Decedent's death. In short, Respondent simply has failed to present any authority or evidence to support his opposition to this petition. Based on the foregoing, the petition is GRANTED, and Petitioner may submit a proposed order providing for the disposition of Decedent's remains consistent with his wishes expressed in the contracts he signed with Memory Garden. As Petitioner conceded in her reply, that does not include cremation, and the order shall so provide. The request for judicial notice Petitioner submitted with the reply is DENIED. New evidence generally may not be presented with the reply, and Petitioner failed to establish any good cause for doing so in this case. Petitioner's counsel is ordered to give notice of this ruling.
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